

25STCV14642 25STCV14642

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-24

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Case Number: 25STCV14642 Hearing Date: September 24, 2026 Dept: 734

Plaintiff Anthony Ayala applies

ex parte for an order shortening time on Plaintiff's motion to compel further responses to requests for production. The

Court has considered the application and finds the matter suitable for decision in chambers without argument.

First, the Court should point

out a misnomer in the caption of the application. An order "shortening time" is an order prescribing shorter times for the performance of an act, such as an order reducing the time for filing and service of papers under Code of Civil Procedure section 1005. (See Cal.R.Ct. 3.1300(b).) An order that a hearing will be held on standard notice, but on an earlier date than initially

set, is an order advancing a hearing. The difference is not mere semantics, because the two forms of relief require different showings. When the

Court shortens time on a motion and allows an abbreviated briefing schedule, the Court must account for its own ability to hear the motion on less than statutory notice, as well as the parties' ability to meet earlier briefing deadlines. On the other hand, advancing a hearing date (while preserving the briefing times prescribed by Code of Civil Procedure section 1005) is simply a matter of the Court's own ability to accommodate the hearing.

The basis for the application

is the fact that the earliest available hearing date that Plaintiff was able to obtain through CRS was July 16, 2027, which is after the trial date in this case. When parties seek to advance and specially set hearing dates on discovery motions that have been reserved after the discovery cutoff (or after the trial) the Court has historically denied such requests,

because the requests are often the product of procrastination. In the instant case, there is no procrastination: Plaintiff filed the subject motion on

September 15, 2026—ten months before the trial date and nine months before the

statutory discovery cutoff. Unfortunately,
the Court's motion calendar has become increasingly congested due to the tremendous
increase in civil filings in Los Angeles Superior Court.

The application is
GRANTED. The July 16, 2027 hearing on
Plaintiff's motion to compel further responses to requests for production is
advanced to January 11, 2027 at 8:30 a.m.
The deadlines under Code of Civil Procedure section 1005 for filing
opposition and reply papers will be set by reference to the new hearing date.

Moving party to give notice.